

HOUSE No. 2230

The Commonwealth of Massachusetts

PRESENTED BY:

David M. Rogers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to overdose mapping.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 2230

By Representative Rogers of Cambridge, a petition (accompanied by bill, House, No. 2230) of David M. Rogers for legislation to maintain a public database website for fatal and nonfatal opiate overdoses. Mental Health, Substance Use and Recovery.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3601 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to overdose mapping.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws, as appearing in the 2020 Official Edition, is hereby
2 amended by inserting after section 237 the following section:-

3 SECTION 1. Section 237A. (a) Emergency medical service providers, emergency
4 departments, state and local law enforcement agencies, sheriffs' offices, fire departments and
5 coroners, when responding to and reporting on fatal and nonfatal opiate overdoses, shall record
6 the location where the opiate overdose or overdoses occurred. Emergency medical service
7 providers, emergency departments, state and local law enforcement agencies, sheriffs' offices,
8 fire departments and coroners shall submit the location data to the department, pursuant to
9 section 237, not less than 24 hours after the fatal or nonfatal opiate overdose or after receiving
10 the incident toxicology report.

11 (b) The collection, storage and release of location data shall be subject to the
12 requirements of the federal Health Insurance Portability and Accountability Act and the
13 regulations adopted in 45 CFR § 160 and 164.

14 (c) The center for health information analysis, as established in chapter 12C, in
15 consultation with department, shall maintain a public database website for fatal and nonfatal
16 opiate overdoses in the commonwealth. The website shall provide a public electronic record of
17 the locations where the fatal and nonfatal opiate overdoses occur based on the data collected and
18 assembled from emergency medical service providers, emergency departments, state and local
19 law enforcement agencies, sheriffs' offices, fire departments and coroners, which they provide to
20 the department. The department shall maintain the fatal and nonfatal opiate overdose location
21 data collected by emergency medical service providers, emergency departments, state and local
22 law enforcement agencies, sheriffs' offices, fire departments and coroners. The department shall
23 provide the center with a monthly updated data report for the website based on the new data
24 collected.

25 (d) The department and the center shall not publicly disclose any data containing direct
26 personal identification information including: an individual's name, residence, street address,
27 email address, telephone number and social security number.

28 SECTION 2. This act shall take effect on January 1, 2024.